

10.	30-2025-01514516 Zhu vs. Wu	1. Motion to Appear Pro Hac Vice Attorney Michael Wolak III filed an application to appear pro hac vice on behalf of Defendants American Blast Systems, Inc. and American Blast System Payments LLC. The application is unopposed. Moving attorney met the requirements of California Rules of Court, rule 9.40 except that Moving Attorney has not “file[d] with the court a verified application <u>together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application</u> on all parties who have appeared in the cause and <u>on the State Bar at its San Francisco office.</u>” (Cal. Rules of Court, rule 9.40, subd. (c).) The Application states that Moving Attorney “<i>will</i> submit a service copy of the subject motion to allow myself to appear as counsel pro hac vice, the [Proposed] Order thereon, the attached Memorandum of Points and Authorities, my Verified Application and the Declaration of Daniel A. Solitro, upon the State Bar of California through AIMS. Upon submission, I will pay \$50.00 to the State Bar of California as the fee required by California Rules of Court Rule 9.40 for certification and admission pro hac vice to the State Bar of California.” (ROA 84, Verified Application of Michael Wolak III, ¶ 7 [emphasis added].) This does not, however, establish that timely “notice of hearing of the application . . . on the State Bar at its San Francisco office” <i>occurred</i>. The proof of service only establishes service on Defendants Ji Wu, John Chung-Ching Tu, and Blue Gum Warehouse, LLC. If Moving Attorney can establish timely service, as set forth above, before or at the hearing, the Court is inclined to grant the motion at the hearing. If such timely service is not established on the State Bar of California, the Motion will be <i>continued</i> to a date that will allow such compliance and Moving Attorney will be ordered to file the requisite proof of service pursuant to California Rules of Court, rule 9.40(c). Moving attorney to give notice.
11.	30-2025-01453654 400 Spectrum Holdings LLC vs. McSen Realty Corp.	1. Motion to Compel Production 2. Case Management Conference Plaintiff 400 Spectrum Holdings LLC (Plaintiff or "Landlord") seeks to order Defendant McSen Realty Corp (Defendant or “Tenant”) to serve initial responses to Landlord's Requests for Production of Documents (Set One) and for an award of monetary sanctions in the amount of \$1,297.20 payable by Defendant and defendant’s attorney, Hanzhang Xu, pursuant to CCP§§ 2030.290, 2031.300, 2033.280, and 2023.030(a). (ROA 93) Pursuant to CCP§ 2031.300, if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party making the demand may move for an order compelling response to the demand. The Code of Civil Procedure requires the Court to issue sanctions against a party for its failure to respond to discovery. CCP§ 2031.300(c). In this instance, on August 29, 2025, Plaintiff’s attorney propounded Requests for Production of Documents (Set One) on Defendant McSen Realty Corp. Defendant has not served any responses, nor has it attempted to request any extension to respond, despite Landlord's meet and confer efforts.

		(Decl. of Olinik¶6.) Defendant fails to show it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. As such, the unopposed Motion is GRANTED. Defendant McSen Realty Corp. is ordered to provide verified responses to Request for Production of Documents (Set 1), without objections, within 30 days service of the Notice of Ruling. Sanctions against Defendant McSen Realty Corp are awarded in the amount of \$1000, to be paid within 30 days Moving Party to give notice.
12.	30-2024-01412435 Beseau vs. Ladera Ranch Maintenance Corporation	1. Motion for Summary Judgment and/or Adjudication Cross-Defendant Bobrick Washroom Equipment Inc. (“Cross-Defendant”) filed a motion for summary judgment, seeking summary judgment or adjudication on the (1) first cause of action for implied indemnity, (2) second cause of action for comparative contribution, (3) third cause of action for declaratory relief, and (4) fourth cause of action for negligence (products liability) as alleged in Ranch Maintenance Corporation’s Cross-Complaint against Cross-Defendant Bobrick Washroom Equipment Inc. Cross-Complainant Ranch Maintenance Corporation (“Cross-Complaint”) opposes the motion. For the reasons discussed below, and based on applicable law, the Motion is DENIED. I. CROSS-DEFENDANT’S LIABILITY FOR THE SHOWER BENCH COLLAPSE IS A TRIABLE ISSUE OF FACT Cross-Complainant seeks to hold Cross-Defendant liable for the shower bench collapse pursuant to the legal theory of negligence based on product liability. In the operative Cross-Complaint, Cross-Complainant alleges that Cross-Defendant negligently “designed, manufactured, assembled and sold the BOBRICK shower seat/bench, model no. 5181 or 5191.” (Cross-Complaint, ¶ 31.) The Cross-Complaint states: “Cross-Complainant is informed and believes and thereon alleges that Cross- Defendant, BOBRICK, and ROES 1 through 20 knew that the BOBRICK shower seat/bench, model no. 5181 or 5191 was manufactured, designed, assembled and sold for use by Cross-Complainant but was defective and dangerous in the manner in which it was intended to be used by failing to support individuals with a weight of less than 500 pounds.” (Cross-Complaint, ¶ 36.) In a discovery response, Cross-Complainant stated: “The design of the bench that failed, produced by Bobrick, does not have direct vertical support as the subsequently developed and designed bench in their product catalog. Given that design, the potential for excessive forces on the attachment screws, consistent with the design of the accident bench, is magnified given the rise that the potential failure, that Plaintiff’s claims occurred, gave rise to her accident and injury.” (Response to Special Interrogatory No. 18.)